

Court No. - 29

Case :- WRIT - C No. - 15360 of 2013

Petitioner :- Smt. Shailesh Mittal

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- J.S. Pandey

Respondent Counsel :- C.S.C., Amrit Lal Yadav

Hon'ble Sunil Ambwani, J.

Hon'ble Bharat Bhushan, J.

Heard Sri J.S. Pandey, learned counsel appearing for the petitioner and Sri A.L. Yadav, learned counsel appearing for respondent Nos. 2, 3 and 4.

The petitioner in this writ application assails the notice in Annexures-3 & 4 directing the petitioner to remain present at the time of checking of meter on 11/12.03.2013 by a team constituted for the purpose.

The grievance of the petitioner is that as per the terms of the UP Electricity Supply Code, 2005, he has opted for the meter to be examined by an independent agency, whereas the committee for inspection has been constituted by the respondent Nos. 2, 3 and 4, all of whom are officers serving under respondent no. 2, to check the meter.

Learned counsel appearing for the respondent submits that the petitioner did not opt for any particular laboratory either departmental or private for getting the meter checked and accordingly the meter is to be checked in the departmental laboratory in presence of the committee constituted for the purpose. In the course of hearing, the learned counsel for the petitioner submitted that the petitioner will have no objection if the meter is checked by any of the team constituted by the respondents upon intimation given to the petitioner.

We, thus, dispose of the writ petition directing respondent Nos. 2, 3 and 4 to get the meter checked by any independent agency at the cost of the petitioner. The department may make a provisional assessment towards expenses to be incurred for checking the meter. Depending on the actual cost charged by the said independent agency, intimation shall be given to the petitioner to deposit the amount within fifteen days thereafter.

In view of the above order, the petitioner need not remain present as per the direction in the letter dated 21.2.2013.

Order Date :- 19.3.2013

RavindraKSingh